

Petitioner v. State of Uttar Pradesh

Allahabad High Court · Division Bench · 7 October 2025 · Writ-C No. 33494 of 2025 · **Writ disposed; Clause 6.8 hearing after Rs. 25,000 deposit.**

HEADNOTE

Writ against a recovery citation for electricity dues disposed of by directing the Assessing Officer to decide the consumer's objection under Clause 6.8 after personal hearing and confrontation with adverse material, subject to deposit of Rs. 25,000, without examining whether assessment procedure had been completed.

FACTUAL SUMMARY

The petitioner approached the Allahabad High Court against a Recovery Citation dated 31 May 2025 issued to recover Rs. 1,66,979 as electricity dues. He asserted that the demand had been created without any opportunity of hearing. Counsel for the State and the distribution corporation were heard. On the record it was not clear whether the statutory assessment procedure had been fully complied with before the citation issued.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

opportunity of hearing on disputed electricity demand

HOLDING

Where it is unclear whether assessment procedure was completed and the consumer alleges that no hearing preceded an electricity demand, the writ court may dispose of the petition by directing the Assessing Officer, under Clause 6.8 of the U.P. Electricity Supply Code, 2005, to decide the objection by a reasoned speaking order after confronting the consumer with all adverse material and granting personal hearing, subject to a specified deposit towards the disputed demand. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ASSESSMENT PROCEDURE HAD BEEN FULLY COMPLIED WITH BEFORE THE RECOVERY CITATION, AND THE MERITS OF THE RS. 1,66,979 DEMAND

The Court recorded that compliance was not clear and did not keep the writ pending or call for a counter affidavit. ¶ 3-4